

**\*\*06.03.2024\*\***

**\*\*Application of Coercive Fine - Public Institution\*\***

The Sector 1 Operator of the Municipality of Bucharest was sanctioned on February 20, 2024, with a coercive fine amounting to 159,000 lei, as it failed to implement the remedial measure ordered by the minutes of finding/sanction issued (on December 14, 2023) by the National Authority for the Supervision of Personal Data Processing.

In this context, we mention that on June 30, 2023, our institution initiated an investigation at Sector 1 of the Municipality of Bucharest following reports regarding a possible violation of legal provisions concerning data processing by this operator, through an online platform used for collecting personal data, acquired before the draft resolution was debated and approved within the Local Council.

Since Sector 1 of the Municipality of Bucharest did not communicate to ANSPDCP the requested information based on its investigative powers, the operator was sanctioned with a warning through the minutes of finding/sanction dated November 9, 2023. The warning sanction was accompanied by a remediation plan which ordered the measure to provide/communicate all the information requested by ANSPDCP within 10 days from the date of communication of the minutes.

Subsequently, considering that the operator did not transmit the requested information within the term set by our institution, in application of Article 14 paragraph (5) letter e) of Law no. 190/2018, ANSPDCP sanctioned Sector 1 of the Municipality of Bucharest with a fine amounting to 10,000 lei, through the minutes of finding/sanction no. 25490 dated December 14, 2023.

By the same minutes, a corrective measure was also applied, consisting of the operator's obligation to provide/communicate all previously requested information necessary for resolving the received complaints.

The Sector 1 Operator of the Municipality of Bucharest did not comply this time either with the request for information addressed by ANSPDCP within the 10-day term from the date of communication of the second minutes, namely until December 28, 2023.

Consequently, on February 20, 2024, the operator was sanctioned with a coercive fine amounting to 159,000 lei, by decision of the president of the National Authority for the Supervision of Personal Data Processing. The coercive fine was calculated from December 29, 2023, to February 19, 2024 (53 days).

We specify that, according to the provisions of Article 18 paragraph (2) of Law no. 102/2005 regarding the establishment, organization, and functioning of the National Authority for the Supervision of Personal Data Processing, republished, ANSPDCP may decide, by decision, to apply a coercive fine of up to 3,000 lei for each day of delay, calculated from the date established by decision, in the case of non-compliance with the ordered measures or in the case of tacit or express refusal to provide all requested information and documents within the investigation procedure or in the case of refusal to submit to the investigation.

**\*\*Legal and Communication Department\*\***

**\*\*A.N.S.P.D.C.P.\*\***